

Sovereignty - Learner-v2

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

SOVEREIGNTY: LOCATED, STRUCTURED, LIMITED

Austin · Bodin · Laski · Kautilya — one question answered four ways

LOCATED

- Bodin: supreme law-giver
- Austin: determinate superior
- Laski: no single locus
- Kautilya: svāmī in saptāṅga

STRUCTURED

- internal / external
- legal / political
- de jure / de facto
- titular / actual

LIMITED

- divine, natural, fundamental law
- federalism, custom, treaties
- pluralist associations
- dharma and yogakṣema

THE VERDICT THAT TRAVELS ACROSS EVERY STEM

Sovereignty is neither dying nor absolute; the question is always HOW
final authority is located, how it is structured, and how far it is limited.

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Sovereignty - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

RAPID REVISION 1 - The Concept and Taxonomy of Sovereignty

- Sovereignty = supreme, final, authoritative power within a political community;
NOT mere force, NOT the government, NOT the whole state.

- Four pairs: internal/external, legal/political, de jure/de facto, titular/actual.

- Legal (who may make law) vs political (real power) often DIVERGE -- Austin is strongest on the first, Laski attacks from the second.

- Controversy arises because final authority clashes with liberty, plurality, federalism, morality and global interdependence.

WRONG: Treating all four thinkers as saying the same thing about "supremacy". The paper asks for exact differences; the taxonomy is how you supply them.

-> Drill this subtopic with MCQs 1-4 in Part II.

RAPID REVISION 2 - Bodin: The Absolute and Perpetual Power of the Commonwealth

- Definition: sovereignty = the ABSOLUTE and PERPETUAL power of a commonwealth.

- A-P-U: Absolute (no human superior within), Perpetual (office, not magistrate), Undivided (shared finality = civil war).

- Bound by divine law, natural law and the leges imperii (fundamental laws) --> legibus solutus re ORDINARY positive law only.

- Context: French wars of religion; unity above faction. Founder of the modern doctrine; shapes both Austin's monism and Laski's critique.

WRONG: Equating Bodin with Austin. Bodin ALLOWS higher-law restraints; Austin's legal sovereign is formally unlimited.

-> Drill this subtopic with MCQs 5-8 in Part II.

RAPID REVISION 3 - Austin I: The Command Theory of Legal Sovereignty

- Analytical jurisprudence: law as it IS, not as it ought to be.

- Sovereign = determinate human superior, habitually obeyed by the bulk, obeying no one.

- Law = command backed by sanction; morality/custom/divine law bracketed out.

- Attributes D-A-I-I-I: Determinate, Absolute, Indivisible, Illimitable, Inalienable.

WRONG: Calling Austin's sovereign "the state in the abstract." It is a DETERMINATE person or body -- a legislature or monarch fits better than diffuse democratic opinion.

-> Drill this subtopic with MCQs 9-12 in Part II.

RAPID REVISION 4 - Austin II: Criticisms and Compatibility with Democracy

- Five criticisms: federalism, international law, customary law, democracy/popular sovereignty, Maine (Ranjit Singh).
- Federalism: "constitution is sovereign" shifts, not solves, the problem.
- Democracy: yes (narrow legal) / no (derivative, divided, rights-bound) -- a degree-judgment.
- Custom + international law: obedience/recognition can PRECEDE sovereign enactment; "tacit adoption" is judged artificial.

WRONG: A flat "Austin is/ isn't compatible with democracy." The mark is in the two-level answer -- legally yes, constitutionally-politically no.

-> Drill this subtopic with MCQs 13-16 in Part II.

RAPID REVISION 5 - Kelsen and Hart: The Post-Austinian Refinement of Legal Sovereignty

- Austin's three internal defects: succession, persistence, power-conferring rules.
- Kelsen: validity from a HIGHER norm; hierarchy of norms terminating in a presupposed GRUNDNORM (General Theory of Law and State, Eng. 1945).
- Hart: primary + secondary rules; ultimate RULE OF RECOGNITION as convergent official practice, INTERNAL point of view (The Concept of Law, 1961).
- Both remain POSITIVISTS: validity separated from moral merit.

WRONG: Dating Kelsen to 1961. 1961 is HART. Kelsen's English edition is 1945. If unsure in the hall, name the works in sequence without years.

-> Drill this subtopic with MCQs 17-20 in Part II.

RAPID REVISION 6 - Laski and the Pluralist Critique of Absolute Sovereignty

- Laski rejects absolute sovereignty as FALSE, DANGEROUS and UNREAL.
- State = one association among many (uniquely important, not morally supreme).
- Sovereignty should be DIVIDED and SHARED; the state must COMPETE FOR ALLEGIANCE by performance.
- Pluralist, NOT anarchist; assessment: strong against absolutism, weak on the state's coordinating necessity in crisis.

WRONG: Presenting pluralism as decentralisation. Laski denies the monistic claim that one final unlimited will exists at all.

-> Drill this subtopic with MCQs 21-24 in Part II.

RAPID REVISION 7 - Kautilya I: Saptanga, the Svami and Dandaniti

- Saptanga (seven limbs): Svami, Amatya, Janapada, Durga, Kosa, Danda, Mitra -> sovereignty is systemic, not merely personal.
- Svami = head, NOT an unlimited master; rule through counsel, discipline, welfare; misrule weakens sovereignty.
- Dandaniti = calibrated coercion; between anarchy (too little) and tyranny (too much); fear without welfare is self-defeating.

- Austin contrast: legal SOURCE of command vs operational ANATOMY of rule.

WRONG: Treating the svami as Austin's illimitable sovereign, or danda as blind terror.

-> Drill this subtopic with MCQs 25-28 in Part II.

RAPID REVISION 8 - Kautilya II: Mandala, Sadgunya, Yogakshema and Modern Relevance

- Mandala: neighbours are positional rivals, their neighbours positional allies ->

"no permanent friend or enemy, only interests."

- Sadgunya (6): Sandhi, Vighraha, Yana, Asana, Samsraya, Dvaidhibhava.
- Yogakshema: security + welfare; durable rule needs prosperity, not just force.
- Relevance by THEME (capacity, fiscal strength, strategy, welfare); democratic

applicability = selective appropriation, not reproduction of monarchy.

WRONG: Reading the realism as amoral, or transposing ancient monarchy directly onto modern democracy.

-> Drill this subtopic with MCQs 29-32 in Part II.

RAPID REVISION 9 - Inter-Thinker Debates, Criticisms and Replies

- Monist vs pluralist axes: location, absoluteness, divisibility, associations, anxiety, weakness.

- Austin vs Kautilya: legal FORM vs political FUNCTION -> a degree-judgment, not agreement/disagreement.

- Bodin vs Austin: higher-law limits vs formally unlimited legal sovereign.

- Reframe: the debate is HOW sovereignty is structured and limited, not WHETHER it exists.

WRONG: Two sequential mini-essays, or criticisms without replies. Use criticism -> reply -> residual.

-> Drill this subtopic with MCQs 33-36 in Part II.

RAPID REVISION 10 - Globalization, Contemporary Sovereignty and Common Traps

- Globalization RECONFIGURES sovereignty (pooled, constrained, negotiated, networked); it does not abolish it.

- Erosion thesis vs transformation/resilience thesis -> graded verdict.
- Legal independence != practical interdependence.
- Trap discipline: Austin's sovereign != the state; Laski != anarchist; Bodin !=

lawless; Kautilya != Austinian absolutist; don't merge Kelsen/Hart/Laski; Kelsen = 1945, Hart = 1961.

WRONG: "Sovereignty disappears under globalization." Say reconfigured, constrained, pooled, negotiated.

-> Drill this subtopic with MCQs 37-40 in Part II.

CANONICAL EXAM APPARATUS (PRESERVED VERBATIM)

The examiner apparatus below is reproduced verbatim from the canonical Sovereignty.md (headings demoted, navigation links stripped). It is preserved intact so that no canonical depth - the keyword and statement bank, the corpus-driven depth delta, the PYQ routing table, the answer architecture with its directive decoder, selectable evidence bank and graded verdict formulas, the link-outs and the sources - is lost in the layered reorganisation.

Keyword and Statement Bank (with Corpus-Driven Depth Delta)

9.1 Keywords

Promoted vocabulary (this pass) ANALYSIS:: hierarchy of norms · *Grundnorm* · basic norm · purity of legal science · primary rules · secondary rules · rule of recognition · rules of change · rules of adjudication · internal point of view · being obliged vs having an obligation · power-conferring rules · succession and persistence problems · competence-distributed authority

- **absolute power** FACT:
- **perpetual authority** FACT:
- **indivisible sovereignty** FACT:
- **determinate human superior** FACT:
- **habitual obedience** FACT:
- **command and sanction** FACT:
- **legal sovereignty / political sovereignty** FACT:
- **de jure / de facto sovereignty** FACT:
- **titular / actual sovereignty** FACT:
- **pluralism** FACT:
- **associational autonomy** FACT:
- **state as one association among many** FACT:
- **saptāṅga state** FACT:
- **daṇḍanīti** FACT:
- **maṇḍala** FACT:
- **śāḍguṇya** FACT:
- **yogakṣema** FACT:
- **prajā-sukha** FACT:

9.2 Statement bank

Use these as crisp sentence-starters in answers:

1. **Bodin transforms sovereignty into the permanent and supreme law-giving power of the commonwealth.** FACT: 2. **Austin sharpens sovereignty into a legal relation of command, obedience, and sanction.** FACT: 3. **Laski dissolves monistic sovereignty into a plural social field of overlapping loyalties.** FACT: 4. **Kautilya embeds sovereignty in an organismic state whose headship is inseparable from welfare and strategy.** ANALYSIS: 5. **The central question is not whether authority exists, but whether it can be absolute, indivisible, and morally unconditioned.** ANALYSIS: 6. **Modern constitutionalism limits sovereignty without eliminating the need for final public authority.** ANALYSIS: 7. **Globalization challenges the isolation of sovereignty, not the very existence of sovereign decision.** ANALYSIS:

9.3 Mini-thesis lines for conclusions

- **Bodin gives the foundational architecture of modern sovereignty; Austin gives its sharpest legal form; Laski gives its most famous pluralist critique; Kautilya gives an indigenous, welfare-oriented and strategic reinterpretation.** ANALYSIS:
- **UPSC rewards answers that combine conceptual precision with comparative judgment rather than repeating the word "supreme" in four different ways.** ANALYSIS:

CORPUS-DRIVEN DEPTH DELTA (expanded PYQ audit)

- **ANALYSIS: Priority:** Primary ownership is 11 of 112 parts and covers Austin, Bodin, Laski and Kautilya across the cycle.
- **FACT: Required doctrinal depth:** Older papers add Kautilya through daṇḍanīti, Laski's pluralism, Austin-Kautilya comparison, globalization, democracy-compatibility and applicability questions.
- **WRONG: Trap / answer consequence:** Do not compare names by biography; fix axes-source, location, divisibility, legal/moral limits, organs of state and modern relevance.

PYQ Routing Table (2018-2025)

ANALYSIS: Corpus signal: 11 primary-owned question-parts out of 112. The local Paper II corpus is continuous from 2018 through 2025. Cross-links do not create duplicate ownership.

Year	Question	Marks	Exact demand
2018	Q1(d)	10	Discuss Kautilya's concept of sovereignty in the light of 'Danda-neety'.
2018	Q2(b)	15	Critically evaluate Laski's view on sovereignty as a satisfactory position in political theory.
2019	Q3(a)	20	Discuss how far does Austin's concept of sovereignty go along with Kautilya's concept of sovereignty.
2020	Q1(d)	10	Explain the importance of Bodin's theory of sovereignty.
2020	Q4(b)	15	State and explain the relevance of the doctrine of sovereignty in times of globalization.
2021	Q1(c)	10	Is Austin's theory of sovereignty compatible with democracy? Discuss.
2021	Q3(c)	15	Discuss Kautilya's contribution regarding the concept of sovereignty. Is it applicable in a democratic form of government? Explain.
2022	Q2(a)	20	What arguments does Bodin present to contend that sovereignty must be absolute, perpetual and undivided? Is Bodin's conception of sovereignty compatible with the social and political ideals of equality, justice and liberty? Critically discuss.
2023	Q2(a)	20	Elucidate why the absolute nature of sovereignty was rejected by Laski.
2024	Q4(b)	15	What insights does the Arthashastra offer with regard to the concept of sovereignty? Does it have any relevance in the modern times? Critically discuss.
2025	Q2(c)	15	'There is no permanent friend or permanent enemy.' Discuss this statement in the light of Kautilya's view on Sovereignty.

See the Socio-Political PYQ Bank, 2018-2025.

Answer Architecture (10 / 15 / 20 Marks)

11.0 Directive decoder - the verb fixes the structure

Directive in the stem	What is actually scored	Compulsory structural move	Failure mode
Explain / Elucidate	internal logic of one doctrine	statement -> attributes -> one distinction -> one worked example	drifting into criticism and under-expounding
Discuss	exposition plus one adjudicated tension	doctrine -> rival -> objection -> reply -> verdict	narrating the thinker's biography or context
Critically examine / evaluate	the objection-reply layer <i>is</i> the answer	two objections, each with a reply and a residual problem	listing five criticisms with no reply
How far / To what extent	a degree judgment is compulsory	state the conditions of holding and of failing	a bare yes/no, or evasive balance
Compare / Distinguish (e.g., Austin vs Kautilya)	shared axes run in parallel	fix 4-5 axes, run both down each, then adjudicate	two sequential mini-essays
Comment on a quoted line (e.g., "no permanent friend or enemy")	locate the line in its doctrine before judging	source doctrine -> what the line asserts -> limit -> verdict	treating the quotation as self-explanatory
Is X satisfactory / acceptable?	the criterion of satisfactoriness must be named first	name the test -> apply -> concede the rival's strength	asserting a verdict with no standard

11.1 10-mark method (~150 words · 5 moves · ~12 minutes)

- Exact doctrine (2 lines)** in the thinker's own vocabulary: *determinate human superior, absolute and perpetual power, saptāṅga, danḍanīti, Grundnorm, rule of recognition*.
- Argument (4-5 lines)** as numbered premises - why the thinker must say this, given his project. 3. **One precision distinction** (legal/political, de jure/de facto, monist/pluralist, primary/secondary rules, interference/domination of

authority). 4. **One evidence unit** from §11.4 with its limitation. 5. **Graded verdict (2 lines)** from §11.5.

WRONG: At 10 marks do not attempt the full Austin -> Kelsen -> Hart sequence. Use **one** repair, fully worked.

11.2 15-mark method (~220 words · 6 moves · ~18 minutes)

1. **Frame the dispute, not the topic** - "the question is whether sovereignty names a person, a norm-hierarchy, an official practice or a plurality of allegiances." 2. **Doctrine A** with its presupposition about state, law and order. 3. **Doctrine B** as the strongest rival, with the presupposition it denies. 4. **One comparison table** on 3-4 shared axes (this is where the marks are on compare/distinguish stems). 5. **One fully worked objection -> reply -> residual problem**.
6. **Conditional verdict** naming what each doctrine explains and what it cannot.

ANALYSIS: For Kautilya stems, the mark-bearing move is showing that his sovereign is **strong but duty-bound** - *saptāṅga* interdependence, *daṇḍanīti*, *yogakṣema* - so that he is neither an Austinian absolutist nor a constitutionalist.

11.3 20-mark method (~300 words · 8 moves · ~25 minutes)

1. **Provisional thesis** using the stem's own directive verb. 2. **Concept map**: internal/external, legal/political, de jure/de facto, monist/pluralist - deployed in two lines, not four paragraphs. 3. **Doctrine exposition** in the thinker's technical terms. 4. **Presuppositions** made explicit - about law, order, human nature or the state. 5. **The internal critique first** (Kelsen and Hart against Austin), then the **external critique** (Laski, federalism, custom, international law). ANALYSIS: This ordering is itself a marker of philosophical control. 6. **Reply on the doctrine's behalf**, ending in a residual problem it cannot discharge. 7. **One dated Indian illustration**, classified accurately as constitutional text, statute or judgment, with the caution that legal status is not philosophical proof. 8. **Graded verdict** that separates what survives (the *concept* of supreme legal authority) from what does not (the *image* of a determinate personal sovereign).

ANALYSIS: On "Austin vs Kautilya" (2019 pattern), run five axes - source of authority, limits, purpose of rule, treatment of law, treatment of external relations - and finish with the asymmetry: Austin analyses the *form* of authority, Kautilya prescribes its *function*.

11.4 Selectable evidence bank - 1 unit at 10 marks, 2 at 15, 4-5 at 20

Each unit is **Claim -> Named anchor -> Use for -> Limitation**.

- **S1 · Sovereignty is absolute and perpetual, yet not lawless.** Claim: the supreme power to give law to all without consent, bound nonetheless by divine law, natural law, the *leges imperii* and private property -> Named: Bodin -> Use for: 2020, 2022 -> Limit: the internal tension between "absolute" and "bound" is Bodin's permanent vulnerability and should be conceded.
- **S2 · The sovereign is a determinate human superior.** Claim: habitually obeyed by the bulk of a given society and not habitually obedient to any like superior; law is command backed by sanction -> Named: Austin -> Use for: 2021, 2019 -> Limit: cannot accommodate power-conferring rules, federalism, custom or international law.
- **S3 · Validity derives from a higher norm, not from power.** Claim: law is a hierarchy of norms terminating in a presupposed *Grundnorm* -> Named: Kelsen, *General Theory of Law and State*, English edition **1945** -> Use for: any stem on the *legal* nature of sovereignty; explains continuity and persistence -> Limit: the basic norm is presupposed, not proved, and revolution forces efficacy back into the theory.
- **S4 · Law is a union of primary and secondary rules.** Claim: the ultimate criterion of validity is a **rule of recognition** existing as convergent official practice viewed from the internal point of view -> Named: Hart, *The Concept of Law*, **1961** -> Use for: the strongest internal critique of Austin; "being obliged vs having an obligation" -> Limit: Dworkin's hard-cases objection remains unresolved.
- **S5 · Sovereignty must be divided and shared.** Claim: the state is one association among many and must compete for allegiance by satisfying wants -> Named: Laski, *A Grammar of Politics* -> Use for: 2018, 2023 -> Limit: under-explains the state's coordinating necessity in emergency.

- **S6 · Authority is duty-bound and organic.** Claim: the *svāmī* is one of seven interdependent limbs (*saptāṅga*), governs through *daṇḍanīti*, and is obligated to *yogakṣema* -> Named: Kautilya, *Arthaśāstra* -> Use for: 2018, 2024, 2019 comparison -> Limit: prudential statecraft is not consent-based legitimacy; do not read modern democracy into it.
- **S7 · Interstate relations are structurally, not morally, determined.** Claim: the *maṇḍala* framework and the *śāḍgunya* six-fold policy make friendship and enmity positional rather than permanent -> Named: Kautilya -> Use for: 2025-pattern quoted-line stems -> Limit: a descriptive-strategic model; it does not by itself license amoral policy.
- **S8 · The personal sovereign dissolves in three different directions.** Claim: Kelsen replaces him with a norm-hierarchy, Hart with an official practice, Laski with plural associations -> Named: §3A.4 comparison grid -> Use for: any "critically examine the theory of sovereignty" stem -> Limit: the three are rivals, not allies; do not merge them.
- **S9 · Legal authority in a modern state is competence-distributed.** Claim: a written supreme constitution with an amendment procedure and judicial review is rule-governed authority, not commander's will -> Named: the Constitution of India; *Kesavananda Bharati* (Supreme Court judgment, **1973**) on limits to the amending power -> Use for: Indian illustration in any Austin/Hart answer -> Limit: FACT: a judgment is a dated judicial decision, not philosophical proof; do not call any Indian body "the Austinian sovereign".
- **S10 · Globalisation reconfigures rather than abolishes sovereignty.** Claim: treaty obligations, dispute-settlement bodies and transnational regulation pool and constrain competence -> Named: §7.3 of this file -> Use for: contemporary-relevance closers -> Limit: ANALYSIS: say "reconfigured, constrained, pooled or negotiated", never "disappeared".

11.5 Graded verdict formulas (adapt; never reproduce mechanically)

- **Form-survives verdict:** "The concept of a supreme legal authority survives every criticism examined; the image of a determinate personal sovereign does not."
- **Internal-repair verdict:** "Austin is not refuted from outside so much as rebuilt from inside - Kelsen supplying a hierarchy of validity, Hart a structure of rules - so positivism is refined rather than abandoned."
- **Asymmetric verdict:** "<Thinker>'s analysis of legal form is unmatched; his account of political reality is not."
- **Function-over-form verdict (Kautilya stems):** "Kautilya's sovereign is strong precisely because he is duty-bound: authority is justified by *yogakṣema*, not by the absence of a legal superior."
- **Pluralist-limit verdict (Laski stems):** "Laski's corrective is indispensable against absolutism, yet a polity that can never speak with one voice cannot discharge the coordinating task that made sovereignty necessary in the first place."
- **Degree verdict:** "Sovereignty is illimitable in legal form, limited in political fact, and negotiated in international practice; the stem is therefore answerable only as a matter of degree."

11.6 Thinker-specific closing lines

- **On Bodin:** Bodin's theory is historically indispensable because it gives modern politics the language of final state authority, but its concentration of power remains difficult to reconcile with equality, justice, and liberty in their modern democratic sense. ANALYSIS:
- **On Austin:** Austin clarifies the legal form of sovereignty with unmatched precision, yet the theory becomes too rigid when faced with constitutionalism, democracy, federalism, custom, and international law. ANALYSIS:
- **On Laski:** Laski's pluralism is a powerful corrective to absolutism because it protects liberty and social reality, though it may insufficiently explain the state's coordinating necessity in crisis. ANALYSIS:
- **On Kautilya:** Kautilya's sovereignty is strong yet duty-bound-combining order, welfare, and strategic prudence-and is therefore more flexible than pure legal monism. ANALYSIS:
- **On Kelsen:** Kelsen purifies sovereignty of personality altogether: what is supreme is not a ruler but the presupposed apex of a hierarchy of validity - a gain in analytical clarity bought at the price of a basic norm that must be assumed rather than demonstrated. ANALYSIS:
- **On Hart:** Hart relocates ultimate authority from a commander's will to the convergent practice of officials, which explains legal obligation far better than habit does, though it leaves the hard-case problem raised by Dworkin

unresolved. ANALYSIS:

Link-Outs to Related Topics

- Individual and State - authority, obligation, and limits of state power.
- Forms of Government - how monarchy, democracy, and constitutionalism relocate actual sovereignty.
- Social-Political Ideals - equality, justice, liberty, and the normative critique of absolutism.
- Political Ideologies - pluralism, liberalism, and the critique of concentrated authority.
- Humanism, Secularism, Multiculturalism - multiple loyalties and coexistence beyond monistic state claims.
- Hegel - compare ethical-statist views with sovereignty and the state.
- Socio-Political PYQ Bank 2018-2025 - for routing this topic into answer practice.

Sources

- O. P. Gauba, *An Introduction to Political Theory*.
- O. P. Gauba, *Socio-Political Philosophy*.
- Rajeev Bhargava and Ashok Acharya, *Political Theory: An Introduction*.
- John Austin, *The Province of Jurisprudence Determined*.
- Jean Bodin, *Six Books of the Commonwealth*.
- Harold J. Laski, *A Grammar of Politics*.
- Harold J. Laski, *Studies in the Problem of Sovereignty*.
- Kautilya, *Arthashastra* (Shamasastri / R. P. Kangle translation).
- Hans Kelsen, *General Theory of Law and State* - first English edition **1945**, translated by Anders Wedberg. Cited by title and year only; no page, chapter, edition or verbatim wording is asserted.
- H. L. A. Hart, *The Concept of Law* (**1961**) - primary and secondary rules, the rule of recognition and the internal point of view. Cited by title and year only; paraphrased, never quoted.
- *Kesavananda Bharati v. State of Kerala* (Supreme Court judgment, **1973**), used only as a dated judicial illustration of a legally limited amending competence.

ANALYSIS: **Provenance note for §3A (added in this pass):** the Kelsen and Hart module is a named-scholar reconstruction adapted into this Philosophy owner. It asserts no page, chapter, edition or verbatim wording, makes no empirical claim about any Indian government, party or period, and deliberately does **not** develop Dworkin's principles/hard-cases argument, which is owned by Individual and State.

ORIGINAL MCQ MASTERY SET - EXACTLY 48 QUESTIONS

Questions 1-40 are core coverage - four per subtopic across the ten subtopics; Questions 41-48 are remedial items targeting the most common misreadings. Correct answers rotate strictly A -> B -> C -> D 12 times.

MCQ 1

Which statement correctly distinguishes legal from political sovereignty?

A. Legal sovereignty is the authority competent to make law; political sovereignty is the real power - opinion, parties, classes - behind it
B. Legal and political sovereignty are always identical in a democracy
C. Legal sovereignty means independence from foreign states; political sovereignty means supremacy within
D. Legal sovereignty is de facto while political sovereignty is de jure

Correct answer: A - Legal sovereignty is the authority competent to make law; political sovereignty is the real power - opinion, parties, classes - behind it

Explanation: Legal sovereignty locates the competent law-maker; political sovereignty is the real force behind the law, and the two frequently diverge.

MCQ 2

A ruler who actually controls territory and is obeyed, yet holds no lawful title, best illustrates:

A. de jure sovereignty B. de facto sovereignty C. titular sovereignty D. legal sovereignty

Correct answer: B - de facto sovereignty

Explanation: de facto sovereignty is effective control and obedience even where lawful title (de jure) is absent or contested.

MCQ 3

The claim that 'sovereignty is not the same as mere force' rests on the idea that:

A. force and sovereignty are identical B. a genuine sovereign never uses coercion C. sovereignty implies recognised or settled final authority, not episodic coercion D. only external sovereignty involves any authority

Correct answer: C - sovereignty implies recognised or settled final authority, not episodic coercion

Explanation: A bandit can coerce but is not sovereign; sovereignty denotes settled, recognised final authority within a political order.

MCQ 4

Titular sovereignty refers to:

A. the real power operating behind the government B. independence in international law C. the authority competent to enact law D. the nominal or ceremonial holder of sovereignty while actual rule lies elsewhere

Correct answer: D - the nominal or ceremonial holder of sovereignty while actual rule lies elsewhere

Explanation: Titular (nominal) sovereignty is the symbolic office - e.g. a ceremonial head - while a cabinet or party actually governs.

MCQ 5

Bodin defines sovereignty as:

A. the absolute and perpetual power of a commonwealth B. the general will of the people C. the command of a determinate superior backed by sanction D. the basic norm presupposed by jurists

Correct answer: A - the absolute and perpetual power of a commonwealth

Explanation: Bodin's classic formulation is that sovereignty is the absolute and perpetual power of a commonwealth.

MCQ 6

For Bodin the sovereign is legibus solutus (unbound by law) only with respect to:

A. divine law B. ordinary positive law, remaining bound by divine, natural and fundamental law C. natural law D. the leges imperii

Correct answer: B - ordinary positive law, remaining bound by divine, natural and fundamental law

Explanation: Bodin frees the sovereign from ordinary positive law but keeps him bound by divine law, natural law and the leges imperii.

MCQ 7

Bodin insists sovereignty must be undivided primarily because:

A. undivided power is administratively cheaper B. the estates demanded it C. two co-equal final authorities could generate irresolvable conflict, reopening civil war D. divided sovereignty is expressly forbidden by natural law

Correct answer: C - two co-equal final authorities could generate irresolvable conflict, reopening civil war

Explanation: Indivisibility is a logical claim: shared finality risks the very disorder Bodin's theory is designed to end.

MCQ 8

Which point best explains why Bodin is 'not simply Hobbes before Hobbes'?

A. Bodin actually wrote after Hobbes B. Bodin rejected the idea of sovereignty altogether C. Bodin made sovereignty formally divisible D. Bodin retains divine, natural and fundamental-law limits that a purely absolutist reading omits

Correct answer: D - Bodin retains divine, natural and fundamental-law limits that a purely absolutist reading omits

Explanation: Bodin's absolutism preserves higher-law restraints, unlike a stripped-down absolutist caricature.

MCQ 9

Austin's sovereign is:

A. a determinate human superior, habitually obeyed by the bulk of society, who obeys no one else B. the general will of the community C. a presupposed basic norm D. the plurality of associations in society

Correct answer: A - a determinate human superior, habitually obeyed by the bulk of society, who obeys no one else

Explanation: Austin's sovereign is a determinate human superior, habitually obeyed and habitually obeying no one.

MCQ 10

For Austin, positive law (law properly so called) is:

A. custom recognised by the courts B. a command of the sovereign backed by a sanction C. a rule of recognition accepted by officials D. whatever conforms to natural justice

Correct answer: B - a command of the sovereign backed by a sanction

Explanation: Austin analyses positive law as the command of a sovereign backed by a sanction.

MCQ 11

The attributes 'determinate, absolute, indivisible, illimitable, inalienable' describe:

A. Bodin's commonwealth B. Laski's pluralist state C. Austin's sovereign D. Kautilya's saptanga state

Correct answer: C - Austin's sovereign

Explanation: These five attributes characterise Austin's sovereign in the command theory.

MCQ 12

Austin brackets morality, custom and divine law out of 'law properly so called' because:

A. he regards them as socially unimportant B. he thinks they are commands of God C. he believes they are always unjust D. his analytical project defines law by source and enforceability, not moral merit

Correct answer: D - his analytical project defines law by source and enforceability, not moral merit

Explanation: Austin's analytical jurisprudence isolates law as it is - by determinate source and sanction - from law as it ought to be.

MCQ 13

Which is a classic criticism of Austin's theory of sovereignty?

A. In a federation, constitutionally shared power makes it hard to name a single determinate superior B. Austin denied that sanctions exist C. Austin accepted international law as law properly so called D. Austin located sovereignty in the general will

Correct answer: A - In a federation, constitutionally shared power makes it hard to name a single determinate superior

Explanation: Federalism divides authority constitutionally, straining Austin's demand for one determinate, indivisible superior.

MCQ 14

Austin's treatment of international law is criticised because he:

A. treated it as the highest form of law B. classed it as 'law improperly so called' since there is no world sovereign, discounting treaty and custom C. derived it from the general will D. equated it with Hart's rule of recognition

Correct answer: B - classed it as 'law improperly so called' since there is no world sovereign, discounting treaty and custom

Explanation: Austin denies international law is law 'properly so called' because it lacks a determinate sovereign, which critics find over-narrow.

MCQ 15

On whether Austin's theory is compatible with democracy, the disciplined answer is that it is:

A. fully compatible without qualification B. wholly incompatible in every sense C. compatible in a narrow legal sense but not in the deeper sense, since democracy makes authority derivative, divided and rights-bound D. irrelevant, because Austin predates modern democracy

Correct answer: C - compatible in a narrow legal sense but not in the deeper sense, since democracy makes authority derivative, divided and rights-bound

Explanation: The mark-bearing answer is a two-level degree-judgment: legally locatable, but not absolute once authority is electoral, divided and rights-constrained.

MCQ 16

Maine's example of Ranjit Singh is used to argue that:

A. sovereignty is always divisible B. international law is genuine law C. custom is always superior to command D. real historical authority can be personal and socially embedded rather than the neat determinate-superior schema

Correct answer: D - real historical authority can be personal and socially embedded rather than the neat determinate-superior schema

Explanation: Maine uses Ranjit Singh to show authority that does not fit Austin's tidy determinate-superior model.

MCQ 17

Kelsen grounds the validity of a legal norm in:

A. a higher norm, terminating in a presupposed Grundnorm B. the command of a determinate superior C. the habitual obedience of subjects D. the moral merit of the norm's content

Correct answer: A - a higher norm, terminating in a presupposed Grundnorm

Explanation: For Kelsen validity flows down a hierarchy of norms and terminates in the presupposed Grundnorm, not in power.

MCQ 18

Hart's 'rule of recognition' is best described as:

A. a moral standard of justice B. an ultimate criterion of legal validity constituted by the convergent practice of officials C. a command backed by a sanction D. the same thing as Kelsen's Grundnorm

Correct answer: B - an ultimate criterion of legal validity constituted by the convergent practice of officials

Explanation: Hart's rule of recognition is a social fact - the convergent, internally-accepted practice of officials - not a presupposed norm or a command.

MCQ 19

Hart's distinction between 'being obliged' and 'having an obligation' shows that Austin's habit of obedience cannot explain:

A. the existence of sanctions B. the sovereign's geographical location C. the normative character of legal obligation and the continuity of authority D. the content of natural law

Correct answer: C - the normative character of legal obligation and the continuity of authority

Explanation: Habitual obedience captures only external regularity; it cannot account for obligation as a reason for action or for succession of authority.

MCQ 20

Which pairing of theorist, work and date is correct?

A. Hart, General Theory of Law and State, 1945 B. Kelsen, The Concept of Law, 1961 C. Austin, The Concept of Law, 1832 D. Kelsen's English General Theory of Law and State (1945); Hart's The Concept of Law (1961)

Correct answer: D - Kelsen's English General Theory of Law and State (1945); Hart's The Concept of Law (1961)

Explanation: Kelsen's English-language General Theory appeared in 1945; Hart's The Concept of Law in 1961 - the dates must not be swapped.

MCQ 21

Laski rejects absolute sovereignty as:

A. philosophically false, politically dangerous and sociologically unreal B. logically valid but practically useless C. necessary but morally regrettable D. fully compatible with pluralism

Correct answer: A - philosophically false, politically dangerous and sociologically unreal

Explanation: Laski's three-fold indictment is that absolute sovereignty is false, dangerous and unreal.

MCQ 22

For Laski, the state is:

A. the sole source of all authority B. one association among many, uniquely important but not morally supreme C. an illusion with no real power D. identical with the government of the day

Correct answer: B - one association among many, uniquely important but not morally supreme

Explanation: Laski's pluralism treats the state as one association among many that must compete for allegiance.

MCQ 23

Laski's pluralism is best distinguished from anarchism because he:

A. abolishes the state entirely B. denies that any authority exists C. limits and disperses state authority without abolishing the state D. accepts absolute sovereignty after all

Correct answer: C - limits and disperses state authority without abolishing the state

Explanation: Laski limits and disperses authority but retains the state - he is a pluralist, not an anarchist.

MCQ 24

The strongest objection to Laski's pluralism is that:

A. it is far too favourable to the state B. it denies the existence of associations C. it secretly endorses monism D. a polity that never speaks with one voice may fail at coordination tasks such as emergency and defence

Correct answer: D - a polity that never speaks with one voice may fail at coordination tasks such as emergency and defence

Explanation: The coordination/finality objection: dispersed authority may be unable to deliver decisive collective action when it is most needed.

MCQ 25

Besides the svami, the saptanga (seven limbs) of the state comprise:

A. amatya, janapada, durga, kosa, danda and mitra B. the general will, law and freedom C. the Grundnorm, recognition and adjudication D. sandhi, vigraha and asana

Correct answer: A - amatya, janapada, durga, kosa, danda and mitra

Explanation: The saptanga are svami, amatya, janapada, durga, kosa, danda and mitra.

MCQ 26

Dandaniti in Kautilya's thought refers to:

A. the circle of neighbouring states B. the science of calibrated coercion, poised between anarchy and tyranny C. the six-fold measures of foreign policy D. the welfare and security of subjects

Correct answer: B - the science of calibrated coercion, poised between anarchy and tyranny

Explanation: Dandaniti is the science of the rod - proportionate coercion that avoids both matsya-nyaya and oppressive excess.

MCQ 27

'Matsya-nyaya' (the logic of the fish) denotes the condition arising from:

A. excessive taxation B. foreign invasion C. too little danda - an anarchy in which the strong devour the weak D. the mandala of states

Correct answer: C - too little danda - an anarchy in which the strong devour the weak

Explanation: Matsya-nyaya is the disorder of insufficient danda, where the big fish eats the small.

MCQ 28

In the saptanga model, a ruler who lacks kosa (treasury) and amatya (counsel):

A. is nonetheless a complete Austinian sovereign B. possesses full de facto sovereignty C. exemplifies popular sovereignty D. holds the title but not effective sovereignty, because authority is systemic

Correct answer: D - holds the title but not effective sovereignty, because authority is systemic

Explanation: Sovereignty in Kautilya is a property of the whole organism; missing limbs mean the title without effective power.

MCQ 29

The mandala theory treats the immediate neighbour as a:

A. natural rival, and the neighbour's neighbour as a natural ally B. permanent and reliable friend C. subordinate limb of one's own state D. source of legal validity

Correct answer: A - natural rival, and the neighbour's neighbour as a natural ally

Explanation: In the mandala, position dictates relations: the adjacent state is a structural rival, the one beyond it a structural ally.

MCQ 30

The sadgunya are:

A. the seven constitutive limbs of the state B. the six-fold measures of foreign policy - sandhi, vighraha, yana, asana, samsraya and dvaidhibhava C. the four sources of positive law D. the three higher-law limits on the sovereign

Correct answer: B - the six-fold measures of foreign policy - sandhi, vighraha, yana, asana, samsraya and dvaidhibhava

Explanation: The sadgunya are Kautilya's six-fold policy options chosen according to relative strength.

MCQ 31

Yogakshema in Kautilya denotes:

A. the circle of states B. calibrated punishment C. the security and welfare of subjects that durable rule must secure D. the presupposed basic norm

Correct answer: C - the security and welfare of subjects that durable rule must secure

Explanation: Yogakshema is the overriding aim of statecraft - the protection and prosperity of subjects.

MCQ 32

'There is no permanent friend or permanent enemy' is best read as:

A. a rejection of all statecraft B. a claim that alliances rest on sentiment C. evidence that Kautilya is wholly amoral D. the structural logic of the mandala - only interests are permanent, framed by the duty of yogakshema

Correct answer: D - the structural logic of the mandala - only interests are permanent, framed by the duty of yogakshema

Explanation: The maxim expresses the mandala's interest-driven logic while remaining framed by the internal duty of welfare.

MCQ 33

The sharpest formulation of the Austin-Kautilya relationship is that:

A. Austin analyses the legal form of authority while Kautilya prescribes its political function B. they are, in substance, identical theories C. both locate sovereignty in the general will D. both deny that final authority is necessary

Correct answer: A - Austin analyses the legal form of authority while Kautilya prescribes its political function

Explanation: Austin gives the legal form; Kautilya the operational function - the form-versus-function asymmetry is the mark-bearing point.

MCQ 34

Bodin differs from Austin in that:

A. Bodin's sovereign is formally unlimited B. Bodin retains higher-law limits, whereas Austin's legal sovereign is formally unlimited C. Austin admits divine-law limits inside the definition of law D. both deny the indivisibility of sovereignty

Correct answer: B - Bodin retains higher-law limits, whereas Austin's legal sovereign is formally unlimited

Explanation: Bodin keeps divine, natural and fundamental-law limits; Austin places moral limits outside the definition of law, leaving the legal sovereign unlimited.

MCQ 35

A well-constructed 'critically examine' answer on absolute sovereignty should:

A. list criticisms with no replies B. present two sequential single-thinker mini-essays C. run each criticism with its monist reply and its residual problem D. avoid naming any thinkers

Correct answer: C - run each criticism with its monist reply and its residual problem

Explanation: The objection - reply - residual ladder is precisely what a 'critically examine' directive rewards.

MCQ 36

Reframing the sovereignty debate, most thinkers can agree that:

A. sovereignty does not exist at all B. sovereignty must be absolute C. sovereignty must always be dispersed D. order needs some principle of final decision; the real question is how it is structured and limited

Correct answer: D - order needs some principle of final decision; the real question is how it is structured and limited

Explanation: Even critics concede a need for final decision; the live issue is the structure and limits of sovereignty, not its bare existence.

MCQ 37

The disciplined verdict on globalization and sovereignty is that sovereignty is:

A. reconfigured - pooled, constrained and negotiated - rather than abolished B. entirely destroyed C. completely untouched D. converted into the general will

Correct answer: A - reconfigured - pooled, constrained and negotiated - rather than abolished

Explanation: Globalization transforms sovereignty into pooled and negotiated forms; it does not extinguish final authority over law, security and membership.

MCQ 38

The key distinction to deploy on the globalization stem is between:

A. de jure and titular sovereignty B. legal independence and practical interdependence C. saptanga and mandala D. primary and secondary rules

Correct answer: B - legal independence and practical interdependence

Explanation: A state can be legally independent yet practically interdependent; separating the two answers the 2020 stem.

MCQ 39

The 'erosion thesis' about globalization holds that:

A. sovereignty is pooled but resilient B. states merely re-tool rather than vanish C. multinationals, financial institutions and regional integration hollow out the nation-state D. sovereignty becomes legally unlimited

Correct answer: C - multinationals, financial institutions and regional integration hollow out the nation-state

Explanation: The erosion thesis claims global economic and institutional forces progressively empty out state sovereignty.

MCQ 40

Routing the four thinkers through globalization, Laski's critique is:

A. weakened, because associations disappear B. irrelevant to external relations C. identical to Austin's position D. strengthened, since interdependence reinforces the case against absolute state supremacy

Correct answer: D - strengthened, since interdependence reinforces the case against absolute state supremacy

Explanation: Interdependence disperses authority further, which reinforces rather than undermines Laski's pluralist critique.

Remedial MCQ 41

A common error calls Austin's sovereign 'the state in the abstract.' The correction is that Austin's sovereign is:

A. a determinate person or body that is habitually obeyed B. the diffuse general will of the nation C. the international community of states D. a presupposed basic norm

Correct answer: A - a determinate person or body that is habitually obeyed

Explanation: Austin requires a determinate, identifiable superior - not a diffuse abstraction like 'the state' or 'the people'.

Remedial MCQ 42

A frequent mistake dates Kelsen's chief work to 1961. Correctly:

A. 1961 is Kelsen and 1945 is Hart B. 1945 is Kelsen's English General Theory, while 1961 is Hart's The Concept of Law C. both works appeared in 1961 D. both works appeared in 1945

Correct answer: B - 1945 is Kelsen's English General Theory, while 1961 is Hart's The Concept of Law

Explanation: Kelsen's English General Theory of Law and State is 1945; Hart's The Concept of Law is 1961.

Remedial MCQ 43

It is wrong to call Bodin's sovereign 'lawless.' Correctly, Bodin's sovereign is:

A. bound by no law whatsoever B. subordinate to the estates in ordinary legislation C. legibus solutus regarding ordinary positive law but bound by divine, natural and fundamental law D. identical to Austin's illimitable sovereign

Correct answer: C - legibus solutus regarding ordinary positive law but bound by divine, natural and fundamental law

Explanation: Bodin frees the sovereign only from ordinary positive law; higher-law limits still bind.

Remedial MCQ 44

A common trap treats Laski as an anarchist. Correctly, Laski:

A. abolishes the state B. accepts absolute sovereignty C. denies that any authority exists D. limits and disperses state authority while retaining the state itself

Correct answer: D - limits and disperses state authority while retaining the state itself

Explanation: Laski's pluralism restrains and distributes authority but keeps the state - it is not anarchism.

Remedial MCQ 45

A frequent error conflates Kelsen, Hart and Laski into one 'critique of Austin.' Correctly, they replace the personal sovereign with:

A. a norm-hierarchy, an official social practice, and a plurality of associations, respectively B. the same rule of recognition in each case C. the general will in each case D. the mandala of states in each case

Correct answer: A - a norm-hierarchy, an official social practice, and a plurality of associations, respectively

Explanation: Kelsen substitutes a norm-hierarchy, Hart an official social practice, and Laski a plurality of associations - three distinct replacements.

Remedial MCQ 46

A trap on the globalization stem is to claim sovereignty 'simply disappears.' Correctly:

A. it becomes legally unlimited B. it is reconfigured - pooled, constrained and negotiated - with final decisions on war, treaty and membership still claimed C. it is wholly untouched by global forces D. it is transformed into the general will

Correct answer: B - it is reconfigured - pooled, constrained and negotiated - with final decisions on war, treaty and membership still claimed

Explanation: The defensible claim is reconfiguration, not extinction: states still claim final decision over core matters.

Remedial MCQ 47

A common misreading treats danda as blind terror. Correctly, danda is:

A. the circle of neighbouring states B. the royal treasury C. calibrated coercion serving order and welfare, poised between anarchy and tyranny D. the general will of the subjects

Correct answer: C - calibrated coercion serving order and welfare, poised between anarchy and tyranny

Explanation: Dandaniti is proportionate coercion oriented to order and welfare, not arbitrary cruelty.

Remedial MCQ 48

A frequent error equates Kautilya's svami with Austin's illimitable sovereign. Correctly, the svami is:

A. an essentially anarchist figure B. a presupposed legal norm C. the embodiment of the general will D. strong but duty-bound within the saptanga organism, constrained by dharma and welfare

Correct answer: D - strong but duty-bound within the saptanga organism, constrained by dharma and welfare

Explanation: The svami is central yet bound by counsel, dharma and the duty of welfare - not an unlimited Austinian master.

PYQS AND ANSWER PRACTICE

EXAM APPLICATION 1 - The Concept and Taxonomy of Sovereignty

This subtopic is the FRAME that every sovereignty stem opens with -- the two lines of concept-mapping the 20-mark method demands before doctrine.

- 2020 Q4(b), 15 marks -- relevance of sovereignty "in times of globalization" ->

the mark-bearing move is to separate EXTERNAL from INTERNAL and LEGAL from POLITICAL, so you can say what globalization touches and what it does not.

- Every thinker stem (Bodin 2020/2022; Austin 2021; Laski 2018/2023; Kautilya

2018/2019/2021/2024/2025) should begin by LOCATING that thinker on the legal/political and monist/pluralist axes -- two lines, not four paragraphs.

MEMORY: Concept spine -> internal/external + legal/political + de jure/de facto + titular/actual -> then "this thinker answers WHERE final authority sits and WHETHER it can be absolute." Distinguish, locate, only then expound.

EXAM APPLICATION 2 - Bodin: The Absolute and Perpetual Power of the Commonwealth

Two exact owner parts live here.

- 2020 Q1(d), 10 marks -- "Explain the importance of Bodin's theory" -> exposition

stem: exact definition (absolute + perpetual power of the commonwealth) -> A-P-U attributes -> the higher-law limits -> one line on why he founds the modern doctrine. Do NOT drift into heavy criticism at 10 marks.

- 2022 Q2(a), 20 marks -- "What arguments does Bodin present that sovereignty must

be absolute, perpetual and undivided? Is it compatible with equality, justice and liberty?" -> two-part 20-marker: PART A run each attribute with its argument; PART B a graded verdict -- historically foundational, normatively problematic; the concentration of final authority gives weak guarantees against the abuse that modern equality/justice/liberty are designed to check.

MEMORY: Bodin verdict formula -> "the first systematic theory of modern sovereignty; indispensable vocabulary, but its absolutism sits uneasily with democratic and pluralist ideals." Concede the absolute/bound tension yourself.

EXAM APPLICATION 3 - Austin I: The Command Theory of Legal Sovereignty

The command-theory exposition is the platform for two owner stems that are resolved in the next two subtopics.

- 2021 Q1(c), 10 marks -- "Is Austin's theory compatible with democracy?" -> you

cannot judge compatibility until you have stated the machine exactly: a determinate superior, habitually obeyed, obeying none; absolute and indivisible. Expound here, adjudicate in Subtopic 4.

- 2019 Q3(a), 20 marks -- "How far does Austin's concept go along with Kautilya's?"

-> the Austin SIDE of the comparison is this command-and-sanction core; run it cleanly before setting it beside Kautilya's saptanga organism (Subtopic 9).

MEMORY: At 10 marks, use ONE precision distinction (legal vs political sovereignty) and ONE evidence unit; do not attempt the full Austin -> Kelsen -> Hart sequence -- that is a 20-mark move.

EXAM APPLICATION 4 - Austin II: Criticisms and Compatibility with Democracy

This subtopic OWNS the democracy stem and supplies the critique bank for the comparison stem.

- 2021 Q1(c), 10 marks -- "Is Austin's theory of sovereignty compatible with

democracy? Discuss." -> PRIMARY HOME. Spine: state the determinate-superior core (Subtopic 3) -> "yes, narrow legal sense" -> "no, deeper constitutional-political sense" (derivative, divided, accountable) -> verdict: compatible only by hollowing out the very absoluteness that defines the theory.

- 2019 Q3(a), 20 marks -- the criticisms (federalism, custom, international law)

are the raw material for showing what Austin's form CANNOT capture, before you set him beside Kautilya.

MEMORY: Compatibility verdict -> "Austin's legal form of sovereignty is unmatched; his account of democratic political reality is not." Degree-judgment, never a bare yes/no.

EXAM APPLICATION 5 - Kelsen and Hart: The Post-Austinian Refinement of Legal Sovereignty

There is NO owner PYQ that names Kelsen or Hart directly -- but this module is the internal-critique depth that lifts a 20-marker from textbook to philosophy.

- 2022 Q2(a) and 2019 Q3(a), 20 marks -- the 20-mark method demands "internal critique FIRST (Kelsen and Hart), THEN external critique (Laski, federalism, custom)." Deploying that ordering is itself a marker of control.

- Any "critically examine the theory of sovereignty / law as command" stem is only half-answered if it stops at Laski.

- Indian illustration (legal-status caution): the Constitution's amendment procedure and judicial hierarchy fit Hart's secondary rules and Kelsen's norm-hierarchy; Kesavananda Bharati (1973) illustrates a legally LIMITED amending competence -- an ILLUSTRATION, never proof a theory is "correct".

MEMORY: 20-mark verdict -> "Austin is not refuted from outside so much as rebuilt from inside -- Kelsen supplying a hierarchy of validity, Hart a structure of rules -- so the CONCEPT of supreme legal authority survives while the IMAGE of a determinate personal sovereign does not."

EXAM APPLICATION 6 - Laski and the Pluralist Critique of Absolute Sovereignty

Two exact owner parts live here, one at each mark level.

- 2018 Q2(b), 15 marks -- "Critically evaluate Laski's view on sovereignty as a SATISFACTORY position in political theory." -> "satisfactory?" means NAME THE TEST FIRST (does the theory protect liberty AND explain coordination?): Laski passes the liberty test, strains the coordination test.
- 2023 Q2(a), 20 marks -- "Elucidate why the absolute nature of sovereignty was REJECTED by Laski." -> run FALSE / DANGEROUS / UNREAL, plus "one association among many", "divided and shared", and "compete for allegiance"; close with the balanced assessment.

MEMORY: Laski verdict formula -> "an indispensable corrective against absolutism, yet a polity that can never speak with one voice cannot discharge the coordinating task -- emergency, defence, redistribution -- that made sovereignty necessary in the first place."

EXAM APPLICATION 7 - Kautilya I: Saptanga, the Svami and Dandaniti

This subtopic owns the danda-neety stem and supplies the Kautilya side of the comparison and applicability stems.

- 2018 Q1(d), 10 marks -- "Discuss Kautilya's concept of sovereignty in the light of 'Danda-neety'." -> danda as the capacity to maintain order through DISCIPLINED, calibrated force, not arbitrary cruelty; tie it to saptanga and yogakshema so danda is not read as terror.
- 2019 Q3(a), 20 marks -- the Kautilya SIDE: svami-as-head within the saptanga organism, bound by dharma and welfare, against Austin's determinate superior.
- 2021 Q3(c), 15 marks -- "Kautilya's contribution ... applicable in a democratic form?" -> the saptanga/dandaniti base is what you carry into the applicability judgment (Subtopic 8).

MEMORY: Kautilya mark-bearing move -> show the sovereign is STRONG BUT DUTY-BOUND (saptanga interdependence, dandaniti, welfare) -- neither an Austinian absolutist nor a modern constitutionalist.

EXAM APPLICATION 8 - Kautilya II: Mandala, Sadgunya, Yogakshema and Modern Relevance

This subtopic owns the two 2024/2025 Arthashastra stems and completes the applicability judgment.

- 2025 Q2(c), 15 marks -- "'There is no permanent friend or permanent enemy.' Discuss ... Kautilya's view on Sovereignty." -> comment-on-a-line stem: source doctrine (mandala/sadgunya) -> what the line asserts (positional interests) -> limit (yogakshema/dharma frame) -> verdict (realist, not normless).
- 2024 Q4(b), 15 marks -- "What insights does the Arthashastra offer ... Does it have relevance in modern times? Critically discuss." -> insights = saptanga + dandaniti + mandala + yogakshema; relevance by THEME (capacity, welfare, strategy), with the caution against literal transposition.
- 2021 Q3(c), 15 marks -- democratic applicability = selective appropriation of statecraft principles, not of kingship.

MEMORY: Quoted-line spine -> LOCATE the line in the mandala doctrine, state what it asserts, name its internal-welfare limit, then a graded verdict. Never treat the quotation as self-explanatory.

EXAM APPLICATION 9 - Inter-Thinker Debates, Criticisms and Replies

This subtopic owns the comparison and the critique architecture.

- 2019 Q3(a), 20 marks -- "How far does Austin's concept go along with Kautilya's?"
- > five axes (source of authority, limits, purpose of rule, treatment of law, external relations); finish with the FORM-vs-FUNCTION asymmetry.
- 2022 Q2(a), 20 marks -- Bodin vs the ideals: the criticisms-of-absolutism grid (democracy, federalism, associational pluralism, moral limits) supplies PART B.
- Any "critically evaluate the doctrine of absolute sovereignty" stem -> run the objection -> reply -> residual ladder.

MEMORY: Compare-stem spine -> "fix the axes, run both/all in parallel, adjudicate with a degree-judgment." Austin gives the FORM; Kautilya the FUNCTION; the honest verdict names what each explains and what it cannot.

EXAM APPLICATION 10 - Globalization, Contemporary Sovereignty and Common Traps

This subtopic owns the globalization stem and the trap discipline that guards every answer.

- 2020 Q4(b), 15 marks -- "State and explain the relevance of the doctrine of sovereignty in times of globalization." -> internal/external + legal/political distinctions -> constraint-not-extinction -> route the four thinkers -> verdict: transformed, pooled and negotiated sovereignty, not its disappearance.
- Contemporary closers on ANY stem -> "reconfigured, not abolished"; distinguish legal independence from practical interdependence.
- The trap list is your final-check before submission on every sovereignty answer.

MEMORY: Globalization verdict -> "sovereignty is illimitable in legal form, limited in political fact, and negotiated in international practice; the stem is answerable only as a matter of degree."

Workbook Source Audit

- Exact PYQ wording, year and marks: local Socio-Political Philosophy Paper II bank, 2018-2025.
- Exactly 11 owner questions (2018:2, 2019:1, 2020:2, 2021:2, 2022:1, 2023:1, 2024:1, 2025:1).
- Ownership discipline: Rousseau's natural-vs-artificial inequality (Social and Political Ideals), the origin of Social Contract Theory (Individual and State), democracy-as-a-form (Forms of Government) and Marxism/anarchism-as-ideology (Political Ideologies) are kept separate and not double-owned here.
- Model solutions authored at examiner grade: thesis -> doctrine in the thinker's own terms -> named source / example -> objection/reply -> graded verdict, each closing with a "Why this earns marks" note.
- MCQs: 40 core plus 8 remedial, exactly 48, strict A-B-C-D rotation 12 times.
- Original Mains: one solved 10-marker, one solved 15-marker and one solved 20-marker.
- Provenance discipline observed throughout: Kelsen (English 1945) and Hart (1961) by title and year only, never swapped; Kesavananda Bharati (1973) is a dated judicial illustration, not proof; no Indian body is called "the Austinian sovereign".
- Comparative-context discipline: Hobbes and Rousseau are marked comparative context, not syllabus thinkers for this item.
- No current-affairs anchor is used (no verified 2026 development forced); relevance is static and syllabus-driven.
- Final consolidated register notes are intentionally excluded from this workbook.

Practice Design

The workbook sequence is the 11 exact verified PYQs -> 40 core MCQs -> 8 remedial MCQs -> original 10/15/20-mark Mains practice. There are no register notes and no canonical apparatus block in this workbook.

DIRECTIVE -> THESIS -> DOCTRINE -> NAMED SOURCE / EXAMPLE -> OBJECTION / REPLY -> VERDICT

SOLVED PYQ BANK - EXACTLY 11 VERIFIED OWNER QUESTIONS

Exact wording, year and marks are parsed from the local Socio-Political Philosophy Paper II bank for 2018-2025. This clause owns exactly 11 primary parts (2018:2, 2019:1, 2020:2, 2021:2, 2022:1, 2023:1, 2024:1, 2025:1). Ownership discipline: Rousseau's natural-vs-artificial inequality (2021) is owned by Social and Political Ideals; the origin of Social Contract Theory (2024) by Individual and State; democracy-as-a-form questions by Forms of Government; Marxism/anarchism-as-ideology by Political Ideologies. Those are NOT counted here.

Solved PYQ 1 - 2018 Q1(d), 10 marks

Question: Discuss Kautilya's concept of sovereignty in the light of 'Danda-neety'.

Model solution

Thesis. For Kautilya, sovereignty is the capacity to maintain order and welfare through *dandaniti* -- the science of the rod, or calibrated coercion -- exercised by the *svami* within the seven-limbed (*saptanga*) state, not the arbitrary will of a despot.

- **Danda as calibrated force.** *Danda* is the state's power of punishment and enforcement. Kautilya's central claim is that it must be *proportionate*: too little danda invites *matsya-nyaya* (the logic of the fish, where the big devour the small); too much breeds resentment and instability. The sovereign's art is the middle path.

- **Systemic, not personal.** Danda is wielded by the *svami* but presupposes *amatya* (counsel), *kosa* (treasury) and *durga* (fort); a ruler without these cannot enforce. So sovereignty is a property of the whole organism.

- **Fused with welfare.** Danda serves *yogakshema* -- the security and prosperity of subjects. Fear without welfare is self-defeating; discipline exists to sustain order, and order to sustain flourishing.

Verdict. Kautilyan sovereignty is realist but not normless: the rod is indispensable, yet bound by proportion, counsel and the duty of welfare. It is therefore closer to a theory of state *capacity* than to Austinian unlimited command.

MEMORY: Why this earns marks - it defines danda precisely (calibrated, not cruel), embeds it in *saptanga* and *yogakshema*, and delivers a graded verdict at exactly the 10-mark depth without drifting into the mandala.

Solved PYQ 2 - 2018 Q2(b), 15 marks

Question: Critically evaluate Laski's view on sovereignty as a satisfactory position in political theory.

Model solution

Thesis. Laski's rejection of absolute sovereignty is a *satisfactory corrective* to monism but an *incomplete* political theory: it wins the test of liberty and loses the test of coordination.

- **Name the test first.** A theory of sovereignty is "satisfactory" if it both (i) protects liberty and plural allegiances and (ii) explains how a polity reaches final, binding decisions. Judge Laski against both.

- **Why Laski passes the liberty test.** He argues absolute sovereignty is philosophically *false* (no body deserves unlimited obedience), politically *dangerous* (it licenses tyranny), and sociologically *unreal* (real power is already dispersed among church, union, guild and locality). The state is one association among many and must *compete for allegiance* by protecting rights and delivering welfare.

- **Why he strains the coordination test.** A polity that can never speak with

one voice struggles to discharge the very tasks -- defence, emergency, redistribution -- that made the concept of final authority necessary. The monist reply is that dispersed authority still needs some ultimate rule of decision.

- **Not anarchism.** Laski limits the state; he does not abolish it. His pluralism is a doctrine of liberty, not of statelessness.

Verdict. As critique, Laski is largely satisfactory; as a self-standing theory, less so. The mature position keeps his corrective against absolutism while conceding that final coordination must reside *somewhere*, even if divided and accountable.

MEMORY: Why this earns marks - it converts "satisfactory?" into an explicit two-part test, runs FALSE/DANGEROUS/UNREAL, states the coordination objection, and grades rather than merely praises Laski.

Solved PYQ 3 - 2019 Q3(a), 20 marks

Question: Discuss how far does Austin's concept of sovereignty go along with Kautilya's concept of sovereignty.

Model solution

Thesis. Austin and Kautilya "go along" only partially: both make an identifiable authority central to order, but Austin analyses the legal *form* of sovereignty while Kautilya prescribes its political *function* -- so agreement is a matter of degree, not identity.

Run the comparison on fixed axes:

- **Source of authority.** Austin: a *determinate human superior*, habitually obeyed, obeying none. Kautilya: the *svami* as head of the *saptanga* organism
- central, but constituted by ministers, treasury, army and allies.
- **Limits.** Austin's legal sovereign is formally *illimitable* (moral limits lie outside the definition of law). Kautilya's king is bound by *dharma*, prudence, counsel and the duty of *yogakshema*.
- **Purpose of rule.** Austin: juristic clarity about legal validity. Kautilya: order, security and welfare through *dandaniti* and statecraft.
- **Convergence.** Both reject anarchy, both need an effective final authority, both take enforcement (sanction / danda) seriously.
- **Divergence.** Austin abstracts the *form*; Kautilya describes the operational *anatomy*. A ruler can satisfy Austin (determinate, obeyed) yet fail Kautilya (no treasury, no counsel), and vice versa.

Verdict. They travel together on the necessity and centrality of authority but part on its nature: legal-analytical monism versus organic, duty-bound statecraft. "How far" is best answered as *form versus function* -- overlapping in structure, distinct in project.

MEMORY: Why this earns marks - it fixes axes and runs both thinkers in parallel, then closes with the FORM-vs-FUNCTION asymmetry instead of a flat "they agree / disagree."

Solved PYQ 4 - 2020 Q1(d), 10 marks

Question: Explain the importance of Bodin's theory of sovereignty.

Model solution

Thesis. Bodin's importance is foundational: he gives the modern state its first systematic theory and its very vocabulary of sovereignty as the *absolute and perpetual power of a commonwealth*.

- **The definition.** Sovereignty is *absolute* (no human superior within), *perpetual* (attached to the office, outlasting the magistrate) and *undivided* (one final law-making centre, because shared finality reopens civil war).
- **Not lawless.** The sovereign is *legibus solutus* only with respect to

ordinary positive law; he remains bound by divine law, natural law and the *leges imperii* (fundamental laws of the realm). Bodin is "not simply Hobbes before Hobbes."

- **Historical importance.** Writing amid the French wars of religion, Bodin

locates one supreme authority above faction, supplying the conceptual foundation on which Austin's monism and Laski's critique both build.

Verdict. Bodin matters because he *founds* the doctrine: indispensable vocabulary and the first coherent account of final authority, even if his absolutism sits uneasily with later constitutional and democratic ideals.

MEMORY: Why this earns marks - it gives the exact definition, the A-P-U attributes, the higher-law limits, and the foundational significance -- pure exposition at 10-mark depth without heavy critique.

Solved PYQ 5 - 2020 Q4(b), 15 marks

Question: State and explain the relevance of the doctrine of sovereignty in times of globalization.

Model solution

Thesis. In times of globalization the doctrine of sovereignty is *not obsolete but reconfigured*: external interdependence constrains states, yet final authority over law, territory, security and membership is still claimed and exercised.

- **Distinguish before deciding.** Separate *external* from *internal* and *legal* from *political* sovereignty. Globalization presses hardest on external

and political autonomy; it does not erase internal legal finality.

- **The pressures.** Trade and finance, supranational and regional bodies, treaty and dispute mechanisms, human-rights norms, and cross-border digital and ecological flows all limit unilateral action.

- **Erosion vs transformation.** The *erosion* thesis says multinationals, financial institutions and integration hollow out the nation-state. The *transformation/resilience* thesis says sovereignty is *pooled, negotiated and networked* -- states re-tool rather than vanish.

- **The key discipline.** Legal *independence* is not the same as practical *interdependence*; a state can be legally sovereign yet economically

constrained. Route the thinkers: Bodin (a final internal authority is still needed), Austin (interdependence complicates the "uncommanded superior"), Laski (interdependence strengthens the pluralist critique).

Verdict. Sovereignty is illimitable in legal form, limited in political fact and negotiated in international practice; its relevance survives as a matter of degree, not as a stale absolute.

MEMORY: Why this earns marks - it distinguishes the senses first, weighs erosion against transformation, and separates legal independence from practical interdependence rather than declaring sovereignty "dead."

Solved PYQ 6 - 2021 Q1(c), 10 marks

Question: Is Austin's theory of sovereignty compatible with democracy? Discuss.

Model solution

Thesis. Austin's theory is compatible with democracy only in a *narrow legal* sense; in the *deeper constitutional-political* sense it is not, because democracy makes final authority derivative, divided and rights-bound -- the very features his illimitable sovereign excludes.

- **State the core.** Austin's sovereign is a *determinate human superior*, habitually obeyed, obeying none; *absolute, indivisible, illimitable*.

- **Yes (narrow legal).** One can still identify a determinate law-making body -- a sovereign legislature -- so democracy is not formally incompatible with a locatable legal sovereign.

- **No (deeper sense).** Democratic authority is *derivative* (electorally dependent on the people), *divided* (separated and federal in function), and *morally constrained* (fundamental rights, judicial review). "The people" are

too indeterminate to be Austin's determinate superior.

Verdict. Compatible only by hollowing out the absoluteness that defines the theory. Austin captures the legal *form* of authority well and its democratic *political reality* poorly -- a degree-judgment, never a flat yes or no.

MEMORY: Why this earns marks - it answers on two levels (legal yes / constitutional no) and ties incompatibility precisely to derivativeness, division and rights, not to vague "democracy is different."

Solved PYQ 7 - 2021 Q3(c), 15 marks

Question: Discuss Kautilya's contribution regarding the concept of sovereignty. Is it applicable in a democratic form of government? Explain.

Model solution

Thesis. Kautilya's contribution is a comprehensive science of sovereignty as state *capacity* -- *saptanga*, *dandaniti*, *mandala* and *yogakshema*; its *principles* are applicable to a democracy by selective appropriation, even though its monarchical *form* is not.

- **The contribution.** Sovereignty is systemic: seven interdependent limbs, with the *svami* as head; enforced through calibrated *danda*; oriented to *yogakshema* (security plus welfare); and defended externally through the *mandala* and *sadgunya*.

- **What transfers to democracy.** Administrative discipline, fiscal strength (*kosa*), intelligence, strategic external balancing, and above all legitimacy-through-welfare are directly relevant to a modern state of any form.

- **What does not.** Kingship, hereditary rule and concentrated personal authority are incompatible with democratic equality and accountability; *danda* in a democracy must operate under the rule of law and rights.

Verdict. Kautilya is applicable to democracy as a theory of effective, welfare-oriented statecraft, not as a template of government. The principles travel; the monarchical form is left behind.

MEMORY: Why this earns marks - it separates transferable *principles* from the > non-transferable *form*, giving a disciplined "yes, selectively" instead of a blanket applicable / not-applicable.

Solved PYQ 8 - 2022 Q2(a), 20 marks

Question: What arguments does Bodin present to contend that sovereignty must be absolute, perpetual and undivided? Is Bodin's conception of sovereignty compatible with the social and political ideals of equality, justice and liberty? Critically discuss.

Model solution

Thesis. Bodin argues sovereignty must be *absolute*, *perpetual* and *undivided* to end civil war; but measured against equality, justice and liberty his conception is only partly compatible -- historically foundational, normatively problematic.

PART A - the arguments.

- **Absolute.** To end faction the sovereign must have no human superior within the commonwealth and be able to make and unmake law without consent -- yet he is still bound by divine law, natural law and the *leges imperii*.

- **Perpetual.** Sovereignty attaches to the *office*, not a temporary magistrate, so authority persists across rulers and cannot be reclaimed by those who conferred it.

- **Undivided.** If two authorities were each final, their conflict could reopen the disorder Bodin means to close; hence one final law-making centre.

PART B - compatibility with the ideals.

- **Tension conceded.** Concentrated final authority offers weak guarantees

against the abuse that equality, justice and liberty are designed to check; the higher-law limits are conceptually real but institutionally soft.

- **Partial defence.** Bodin's order-first logic secures the civil peace without which no ideal is realisable, and his higher-law limits deny pure caprice.

Verdict. Bodin is the indispensable founder of the modern doctrine, but his absolutism is compatible with the ideals only where those limits genuinely bind; modern equality, justice and liberty require the institutional checks -- constitutional supremacy, rights, judicial review -- that Bodin's scheme lacks.

MEMORY: Why this earns marks - it runs each attribute with its argument (Part A), then grades compatibility honestly (Part B), conceding the absolute-vs-bound tension instead of defending or dismissing Bodin wholesale.

Solved PYQ 9 - 2023 Q2(a), 20 marks

Question: Elucidate why the absolute nature of sovereignty was rejected by Laski.

Model solution

Thesis. Laski rejects the *absolute* nature of sovereignty because it is, in his three-fold indictment, philosophically *false*, politically *dangerous* and sociologically *unreal* -- and because human loyalty is genuinely plural.

- **False.** No body -- not even the state -- deserves the unlimited, unconditional obedience that absolute sovereignty demands; allegiance must be *earned* by protecting rights and delivering welfare, not *owed* to a metaphysical supremacy.

- **Dangerous.** Treating one will as final licenses tyranny and overrides minority rights, local autonomy and individual conscience.

- **Unreal.** Society is a web of associations -- church, union, guild, profession, locality -- each commanding real loyalty, so power is *already* dispersed; monism misdescribes the facts.

- **State as one association among many.** Uniquely important, but not morally supreme; sovereignty should therefore be *divided and shared*, and the state must *compete for allegiance*.

- **Reply to the "shared sovereignty is not sovereignty" objection.** Laski's point is that the monistic *concept itself* is misleading; theory should mirror the real plurality of authority rather than force it into one pyramid.

Verdict. Laski is an indispensable corrective against absolutism; his own weakness is coordination -- a polity that never speaks with one voice may struggle in emergency, defence and redistribution. He remains a pluralist, not an anarchist.

MEMORY: Why this earns marks - it elucidates FALSE/DANGEROUS/UNREAL as the reasons for rejection, adds "one association among many" and "earned allegiance," and pre-empts the shared-sovereignty objection.

Solved PYQ 10 - 2024 Q4(b), 15 marks

Question: What insights does the Arthashastra offer with regard to the concept of sovereignty? Does it have any relevance in the modern times? Critically discuss.

Model solution

Thesis. The *Arthashastra* offers a rich, realist science of sovereignty -- *saptanga*, *dandaniti*, *mandala*, *sadgunya* and *yogakshema* -- whose *themes* remain strikingly relevant, provided they are appropriated by theme rather than transposed literally.

- **The insights.** Sovereignty as *state capacity*: seven interdependent limbs with the *svami* as head; calibrated coercion (*dandaniti*) between anarchy and tyranny; external survival through the *mandala* circle and the six-fold *sadgunya* policy; and the overriding aim of *yogakshema* -- security plus the welfare of subjects.

- **Why it is relevant.** Kautilya refuses the false choice between moralism and

realism: durable power rests on administrative competence, fiscal strength, intelligence, strategic balancing *and* legitimacy through welfare -- concerns every modern state shares.

- **The caution.** The *form* is monarchical and the methods sometimes ruthless; relevance lies in the underlying principles of statecraft, not in reproducing ancient kingship or espionage practice.

Verdict. The *Arthashastra* is highly relevant as a theory of effective, welfare-oriented, strategically prudent statecraft; its value is thematic and principled, and must be separated from its dated institutional form.

MEMORY: Why this earns marks - it lists concrete insights, argues relevance by theme (capacity, welfare, strategy), and adds the transposition caution instead of claiming ancient monarchy maps directly onto the present.

Solved PYQ 11 - 2025 Q2(c), 15 marks

Question: 'There is no permanent friend or permanent enemy.' Discuss this statement in the light of Kautilya's view on Sovereignty.

Model solution

Thesis. "There is no permanent friend or permanent enemy" states the structural logic of Kautilya's *mandala*: in the circle of states only *interests* are permanent -- but this realism operates *within*, not against, the internal duty of *yogakshema* and *dharma*.

- **Locate the line.** It belongs to the *mandala* theory of external sovereignty, where the immediate neighbour is a natural rival and the neighbour's neighbour a natural ally. Friendship and enmity are *positions* in a structure, so they shift as interests shift.

- **The policy toolkit.** Choices follow relative strength through the *sadgunya* (six-fold policy) -- *sandhi* (peace), *vigraha* (war), *yana* (march), *asana* (poised neutrality), *samsraya* (seeking shelter/alliance) and *dvaividhibhava* (dual policy).

- **The limit.** The maxim is not a licence for amoral policy. External strategy serves the survival and prosperity of the realm (*yogakshema*) and is framed by the internal obligations of the *saptanga* state. The realist is not normless.

Verdict. On sovereignty, the statement captures Kautilya's insistence that *external* sovereignty is relational and interest-driven, while *internal* sovereignty remains a duty-bound science of order and welfare. Interests are permanent; the ethical frame of statecraft is not thereby abolished.

MEMORY: Why this earns marks - it locates the quotation in the mandala doctrine, unpacks it through sadgunya, and states the yogakshema/dharma limit rather than treating the line as a self-evident endorsement of pure realpolitik.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Three original questions authored for this package (not PYQs), one each at 10, 15 and 20 marks, with full model solutions.

Original Mains 1

Original practice - Socio-Political Philosophy Paper II - 10 marks - answer in about 150 words - directive: Distinguish / Explain

Question: Distinguish between legal and political sovereignty, and explain why the distinction is indispensable for analysing a modern constitutional democracy.

Model solution

Thesis. Legal sovereignty is the authority *competent to make law*; political sovereignty is the *real power* -- electorate, opinion, parties, organised classes -- that stands behind the law. Conflating them is the commonest analytical error.

- **Legal sovereignty** answers "whose enactment is valid law?" -- Austin's angle:

a determinate law-making body.

- **Political sovereignty** answers "what force actually shapes and limits that

body?" -- diffuse, plural and only partly formal.

- **Why it matters in a democracy.** A legislature may be the legal sovereign while

the electorate is the political sovereign; the legal sovereign is thus *derivative* (electorally dependent), *divided* (separated and federal in function) and *rights-bound* (judicial review). The distinction is what lets us say authority is legally locatable yet politically constrained.

Verdict. Without the legal/political distinction, both Austin's monism and its democratic critique collapse into confusion; with it, one can locate final legal authority while acknowledging the real, plural forces that discipline it.

Original Mains 2

Original practice - Socio-Political Philosophy Paper II - 15 marks - answer in about 250 words - directive: Critically examine

Question: 'The pluralist critique wins the argument about liberty but loses the argument about order.' Critically examine this claim with reference to Laski.

Model solution

Thesis. The claim is largely fair: Laski's pluralism is a powerful doctrine of liberty but a weaker doctrine of order -- though the dichotomy can be softened.

- **The liberty argument, won.** Laski shows absolute sovereignty is philosophically *false* (no body deserves unlimited obedience), politically *dangerous* (it licenses tyranny and overrides minorities and conscience), and sociologically *unreal* (loyalty is already dispersed across church, union, guild and locality). Treating the state as one association among many that must *earn* allegiance genuinely protects freedom and plurality.

- **The order argument, strained.** A polity that can never speak with one voice struggles with the coordinating tasks -- emergency, defence, redistribution -- that first motivated the idea of final authority. The monist reply is that dispersed authority still presupposes some ultimate rule of decision.

- **Softening the dichotomy.** Laski does not abolish the state; his is a plea for *divided and accountable* final authority, not for its disappearance. Order and liberty are then rivals only if finality must be absolute.

Verdict. As stated the claim holds: pluralism's liberty case is decisive, its order case incomplete. The mature position banks Laski's corrective against absolutism while conceding that ultimate coordination must reside somewhere -- even if divided, rights-bound and revisable. Liberty and order are reconciled not by choosing one, but by structuring and limiting sovereignty.

Original Mains 3

Original practice - Socio-Political Philosophy Paper II - 20 marks - answer in about 400 words - directive: Examine

Question: Examine the claim that Kelsen and Hart rescue the concept of legal sovereignty from Austin's difficulties while abandoning his image of a determinate personal sovereign.

Model solution

Thesis. The claim is essentially correct: the deepest repair of Austin comes from *inside* legal positivism. Kelsen and Hart preserve the idea of supreme legal authority while dissolving Austin's determinate personal sovereign into, respectively, a hierarchy of norms and a structure of rules.

- **Austin's internal defects.** The command theory cannot explain three things: *succession* (why a new ruler's first command is already law), *persistence* (why an ancient statute still binds), and *power-conferring rules* (how one makes a valid will or contract, where the "sanction" for a defect is nullity, not

punishment). These are internal problems, not external ones.

- **Kelsen's rescue.** Validity flows *downward*: a norm is valid because a higher norm authorises it, terminating in a presupposed *Grundnorm*. The personal

commander disappears into the top norm-creating competence. Succession and persistence are explained by continuity of the norm-hierarchy, not by anyone's will. The residual difficulty is *revolution*: when a new order becomes "by and large effective," jurists presuppose a new basic norm, so efficacy re-enters a theory built to exclude power.

- **Hart's rescue.** Law is the union of *primary* rules (duties) and *secondary* rules (recognition, change, adjudication). The ultimate test of validity is the *rule of recognition* -- a social fact constituted by the convergent practice of officials viewed from the *internal point of view*. Hart's "being obliged" versus "having an obligation" exposes precisely what Austin's habit of obedience cannot capture: the normative, reason-giving character of law.

- **What survives, what is abandoned.** What survives is the *concept* of a supreme criterion of legal validity. What is abandoned is the *image* of a determinate human superior, habitually obeyed and obeying none.

Objection and reply. A critic may say this is not "sovereignty" at all but its replacement. Reply: the *function* sovereignty named -- a final, system-defining source of legal validity -- is retained; only its personified *form* is discarded. Dworkin's later challenge (principles in hard cases) presses Hart further, but is owned by Individual and State and merely routed here.

Verdict. Austin is not so much refuted from outside as rebuilt from within: Kelsen supplies a hierarchy of validity, Hart a structure of rules, and the concept of supreme legal authority survives while the determinate personal sovereign does not. The claim stands.